

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----	X	
DAVID RUIZ,	:	<u>VERIFIED COMPLIANT</u>
	:	
Plaintiff,	:	Index No.:
	:	
-- against --	:	
CITY OF NEW YORK, NEW YORK CITY POLICE	:	
DEPARTMENT AND NEW YORK CITY POLICE	:	
OFFICERS RUBEN MARIA Tax No. 928702,	:	
RONNIE MORALES Tax No. 943585 of the 26 th	:	
PRECINCT, and "JOHN DOES 1-4" PERSONS	:	
EMPLOYED BY THE CITY OF NEW YORK,	:	
	X	
Defendants.		

DAVID RUIZ (hereinafter the "Plaintiff"), by his attorneys, Ateshoglou & Aiello, P.C., complaining against the City of New York, New York City Police Department and New York City Police Officers Ruben Maria tax no. 928702, Ronnie Morales tax no. 943585 of the 26th precinct, and "John Does 1-4" persons employed by the City Of New York (hereinafter collectively the "Defendants"), upon information and belief, alleges as follows:

1. Plaintiff at all pertinent times was and is a resident of the City, County and State of New York.
2. Defendant City of New York (hereinafter "CITY") at all pertinent times was and is a municipal corporation incorporated under the laws of New York State.
3. Defendant City of New York Police Department (hereinafter the "NYPD") is an agency of the City of New York.
4. Upon information and belief, Defendant Ruben Maria (hereinafter the "MARIA") Tax No. 928702 of the 26th Precinct is an employee of the NYPD.

5. Upon information and belief, Defendant Ronnie Morales (hereinafter the "MORALES") Tax No. 943585 of the 26th Precinct is an employee of the NYPD.

6. Upon information and belief, Defendants "John Does 1-4" (hereinafter the "OFFICERS") were and are employees of the NYPD.

7. That at all pertinent times, Defendant CITY operated, and presently operates Defendant NYPD.

8. That at all pertinent times, Defendant CITY controlled, and presently controls Defendant NYPD.

9. That at all pertinent times, Defendant CITY managed, and presently manages Defendant NYPD.

10. Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) in accordance with General Municipal Law Sections 50(e) and (I) within ninety (90) days of the incident on or about September 3, 2014. The Notice of Claim set forth the name and address of the claimant and his attorney, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

11. A hearing will be conducted pursuant to General Municipal Law Section 50(h) on or about December 3, 2014.

12. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

13. This action is being commenced within one year of the incident which gives rise to the action.

14. On or about November 15, 2013, at or near 141st Street between Amsterdam and Convent Avenue, County, City, and State of New York at approximately 7:21 p.m., Plaintiff was arrested

without probable cause. Due to the aforesaid actions of the Defendants, Plaintiff sustained mental and personal injuries. Plaintiff was verbally abused and illegally searched by New York City Police Officers Ruben Maria Tax No. 943585, Ronnie Morales Tax No. 928702 of the 26th precinct and “John Does 1-4”, employees of the New York City Police Department. Defendants commenced a prosecution against Plaintiff without probable cause or justification, causing Plaintiff to be incarcerated for a period in excess of four (4) days.

15. Plaintiff suffered serious emotional and financial injuries as a result of the aforesaid conduct of the Defendants.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND IMPRISONMENT
AGAINST ALL DEFENDANTS**

16. The allegations set forth in paragraphs “1” through “15” inclusive are incorporated herein as if fully set forth.

17. Defendants MARIA and MORALES intended to cause the arrest and seizure of Plaintiff without a lawful warrant and without probable cause.

18. Defendant OFFICERS intended to cause the arrest and seizure of Plaintiff without a lawful warrant and without probable cause.

19. Plaintiff was aware of such confinement and did not consent to said confinement.

20. Plaintiff’s arrest and seizure was without legal justification.

21. That Defendants CITY and NYPD are responsible and liable for the acts of Defendants MARIA and MORALES done within the scope of their employment under the doctrine of *respondeat superior*.

22. That Defendants CITY and NYPD are responsible and liable for the acts of Defendant OFFICERS done within the scope of their employment under the doctrine of *respondeat superior*.

23. As a direct and proximate cause of Defendants' false arrest and seizure of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

24. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR ASSAULT AND BATTERY
AGAINST ALL DEFENDANTS**

25. The allegations set forth in paragraphs "1" through "24" inclusive are incorporated herein as if fully set forth.

26. On or about November 15, 2013, at or near 141st Street between Amsterdam and Convent Avenue, County, City, and State of New York at approximately 7:21 p.m., MARIA, MORALES and the OFFICERS intended to make bodily contact with Plaintiff.

27. On or about November 15, 2013, at or near 141st Street between Amsterdam and Convent Avenue, County, City, and State of New York at approximately 7:21 p.m., MARIA, MORALES and the OFFICERS did in fact make bodily contact with Plaintiff.

28. The aforesaid bodily contact by MARIA, MORALES and the OFFICERS against Plaintiff was offensive to Plaintiff.

29. That Defendants CITY and NYPD are responsible and liable for the acts of the MARIA, MORALES and the OFFICERS done within the scope of their employment under the doctrine of *respondeat superior*.

30. As a direct and proximate cause of the Defendants' assault and battery of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

31. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION
AGAINST THE CITY OF NEW YORK AND
THE NEW YORK CITY POLICE DEPARTMENT**

32. The allegations set forth in paragraphs "1" through "31" inclusive are incorporated herein as if fully set forth.

33. That Defendants CITY and the NYPD failed to exercise reasonable care in hiring MORALES, MARIA and the OFFICERS; therefore, breaching their duty to Plaintiff as well as to the Public to exercise reasonable care in their hiring of employees.

34. That Defendants CITY and the NYPD should have known of the propensity of MARIA, MORALES and the OFFICERS to commit injurious acts.

35. That Defendants CITY and the NYPD were also negligent in failing to properly train and supervise its employees, more specifically MARIA, MORALES and the OFFICERS.

36. As a direct and proximate cause of the negligent hiring, training, retention, and supervision by Defendants CITY and the NYPD of MARIA, MORALES and the OFFICERS, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

37. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENCE AGAINST ALL DEFENDANTS**

38. The allegations set forth in paragraphs "1" through "37" inclusive are incorporated herein as if fully set forth.

39. Defendants' actions in causing the assault, battery, arrest and seizure of Plaintiff were in breach of the duty of due care owed to Plaintiff. Defendants MARIA, MORALES and the OFFICERS acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest and lawful stop of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Defendants MARIA, MORALES and the OFFICERS further breached their duty of care to investigate before affecting the stop and seizure of a citizen.

40. That Defendants CITY and NYPD are responsible and liable for the acts of MARIA, MORALES and the OFFICERS done within the scope of their employment under the doctrine of *respondeat superior*.

41. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal

costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

42. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

WHEREFORE, Plaintiff demands judgment against Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND NEW YORK CITY POLICE OFFICERS RUBEN MARIA Tax No. 928702, RONNIE MORALES Tax No. 943585 of the 26th PRECINCT, and "JOHN DOES 1-4" PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: November 11, 2014
New York, New York



Michael A. Delakas, Esq.
ATE\$HOGLU & AIELLO, P.C.
Attorneys for Plaintiff
DAVID RUIZ
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740

In the Matter of the Claim of

DAVID RUIZ

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER RUBEN MARIA Tax No. 928702 OF THE 26TH PRECINCT,
NEW YORK CITY POLICE OFFICER RONNIE MORALES Tax No. 943585 OF THE 26TH PRECINCT AND "JOHN DOES 1-4", PERSONS
EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT

TO: THE COMPTROLLER OF THE CITY OF NEW YORK

PLEASE TAKE NOTICE, that the claimant, David Ruiz, hereby makes a claim against the City of New York, the New York City Police Department, New York City Police Officers Ruben Maria Tax No. 943585 and Ronnie Morales Tax No. 928702 of the 26th precinct and "John Does 1-4", Persons employed by the New York City Police Department as follows:

1. The name and post-office address of each claimant and claimant's attorney is:

Claimant: David Ruiz
2680 8th Avenue, Apt. 7D
New York, New York 10030

Claimant's Attorneys: Ateshoglou & Aiello, P.C.
381 Park Avenue South, Suite 701
New York, New York 10016

2. The nature of claim is:

Claim for false arrest, negligent detention, negligent supervision and hiring, intentional infliction of emotional distress, personal injury, and malicious prosecution, after Claimant was arrested without probable cause for Criminal Possession of a Controlled Substance in the third degree (NYPL §220.16) and Unlawful Possession of Marihuana in the third degree (NYPL §221.05). On or about November 15, 2013, at or near 141st Street between Amsterdam and Convent Avenue, County, City, and State of New York at approximately 7:21 p.m., the Claimant was arrested without probable cause. Due to the aforesaid actions of the Defendants, the Claimant sustained mental and personal injuries. Claimant was verbally abused and illegally searched by New York City Police Officers Ruben Maria Tax No. 943585, Ronnie Morales Tax No. 928702 of the 26th precinct and "John Does 1-4", employees of the New York City Police Department. Defendants commenced a prosecution again Claimant without probable cause or justification, causing Claimant to be incarcerated for a period in excess of four (4) days. Said prosecution was instituted and continued with malice and bad faith and deliberate indifference to Claimant's rights. Said action under Docket No.: 2013NY087214 was dismissed and sealed on July 22, 2014.

2014 SEP -3 PM 12:25
CITY OF N.Y. LAW DEPT.
OFFICE OF CORP. COUNSEL
NEW YORK, N.Y.

2014 SEP -3 PM 12:25
CITY OF N.Y. LAW DEPT.
OFFICE OF CORP. COUNSEL
NEW YORK, N.Y.

3. The time when, the place where and the manner in which the claim arose:

On or about November 15, 2013, at or near 141st Street between Amsterdam and Convent Avenue, County, City, and State of New York at approximately 7:21 p.m., the Claimant was arrested without probable cause. Defendants commenced a prosecution against Claimant without probable cause or justification, causing Claimant to be incarcerated for a period in excess of four (4) days. Said prosecution was instituted and continued with malice and bad faith and deliberate indifference to Claimant's rights.

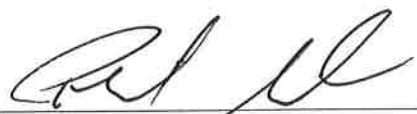
4. The items of damage or injuries claimed are:

Physical injury	\$1,000,000.00
Emotional trauma	\$1,000,000.00
Loss of reputation	\$1,000,000.00
Violation of right against unreasonable seizure	\$1,000,000.00
Violation of statutory rights under 42USC1983	\$1,000,000.00
Malicious prosecution	\$2,000,000.00
Mental and physical distress	\$1,000,000.00
Humiliation and fear	\$2,000,000.00
Total amount claimed	\$10,000,000.00

PLEASE TAKE FURTHER NOTICE that by reason of the foregoing, Claimant was damaged in the sum of Ten Million (\$10,000,000.00) Dollars plus interest and costs.

The undersigned Claimant therefore presents this claim for adjustment and payment. You are hereby notified that unless it is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action on this claim.

Dated: New York, New York
August 15, 2014


Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Claimant
381 Park Avenue South, Suite 701
New York, New York 10016
(212) 545-1740

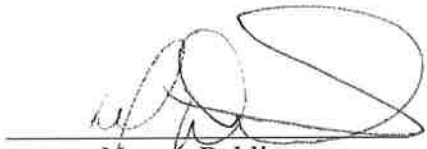
INDIVIDUAL VERIFICATION

State of New York, County of New York ss.:

David Ruiz being duly sworn, deposes and says that deponent is the claimant named in the within action; that deponent has read the foregoing Notice of Claim and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.

David Ruiz
David Ruiz

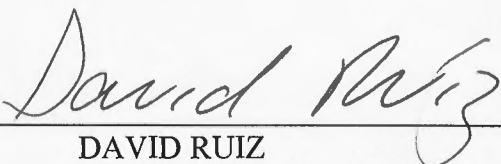
Sworn to before me, this
15 day of August 2014


Notary Public
MICHAEL A. DELAKAS
Notary Public, State of New York
No. 02DE6291460
Qualified in Queens County
Commission Expires October 15, 2017

VERIFICATION

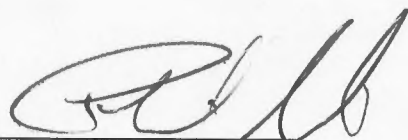
STATE OF NEW YORK)
 S.S.:
COUNTY OF NEW YORK)

DAVID RUIZ, being duly sworn deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Complaint and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.



DAVID RUIZ

Sworn to me before this
13th day of November, 2014



Notary Public

PHILIP AIELLO
Notary Public, State of New York
No. 02AI5076944
Qualified in Rockland County
Commission Expires April 28, 